IN THE HIGH COURT OF ORISSA AT CUTTACK
ABLAPL No.11923 of 2026
CNR No. ODHC010796742026

Sk. Taisim @ Kunal @ Kono ..... ***Petitioner***

Represented by Adv. - Amlan Shakti Paul

-versus-

STATE OF ODISHA ..... ***Opposite Party***

Represented by Adv. – Mr. U.R. Jena, AGA

CORAM:
MR. JUSTICE ADITYA KUMAR MOHAPATRA

ORDER
23.10.2026

Order No.

01. 1. This matter is taken up through Hybrid Arrangement (Virtual /Physical Mode).

2. Heard learned counsel for the Petitioner and learned Additional Govt. Advocate for the State. Perused the Anticipatory Bail Application as well as the F.I.R.

3. This is an application under Section 482 of the B.N.S.S., 2023 filed by the Petitioner for anticipatory bail, involving offence punishable under Section 394 of IPC in G.R. Case No.640 of 2023 in the Court of learned S.D.J.M., Khordha arising out of Khordha Town P.S. Case No.437 of 2023.

4. Learned counsel for the Petitioner at this juncture submitted that the Petitioner does not want to press this application and seeks liberty to surrender before the court below and move an application for bail.

5. Considering such submissions, the Petitioner is given liberty to surrender before the learned court in seisin over the matter in the aforesaid case in the first hour within four weeks hence and move for bail. On such event, the learned Magistrate shall consider his application for bail in the first hour strictly on the basis of the materials on record. In case of rejection of the bail application, the Petitioner may move for bail before the higher forum in the second hour. On such event, the higher forum shall consider and dispose of the bail application of the Petitioner the same day strictly on the basis of the materials on record, by maintaining the principles of parity, if applicable.

6. The case diary be made available on the date of surrender on an application being filed by the Petitioner prior to his date of surrender along with a copy of today's order. Records be transmitted to the higher forum at the cost of the Petitioner, if applied for.

7. The ABLAPL is disposed of accordingly.

Urgent certified copy of this order be granted as per rules.

(A.K. Mohapatra)
Vacation Judge

Sisir

Signature Not Verified
Digitally Signed
Signed by: SISIR KUMAR SETHI
Reason: Authentication
Location: ORISSA HIGH COURT
Date: 24-Oct-2026 18:38:50